

Amendment No. 1 to SB2566

Gardenhire
Signature of Sponsor

AMEND Senate Bill No. 2566*

House Bill No. 2317

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Title 39, Chapter 13, Part 5, is amended by adding the following new section:

39-13-536. Grooming a minor.

(a) This section is known and may be cited as the "Tennessee Anti-Grooming Act."

(b) The purpose of this section is to protect minors from sexual exploitation by criminalizing grooming behavior and supplementing existing child protection laws.

(c) As used in this section:

(1) "Electronic communication" means a signal, message, writing, image, sound, or data transmitted via wire, radio, internet, cellular technology, computer applications, or an electromagnetic, photoelectronic, or photo-optical system;

(2) "Grooming" means an act, pattern of acts, or communication by an adult with a minor or mentally compromised individual, by any medium, including electronic communication, messaging, social media, text, telephone, or in person, that is intended to establish trust, secrecy, emotional connection, or control with a minor or mentally compromised individual with the intent to:

(A) Entice, lure, or solicit the minor or mentally compromised individual to engage in sexual contact, simulated sexual contact, or exploitation;

(B) Prepare, condition, or acclimate the minor or mentally compromised individual for sexual contact or exploitation; or

(C) Facilitate the commission of a sexual offense against the minor;

(3) "Mentally compromised individual" means a person of any chronological age whose mental capacity is limited or compromised to that of a child due to a medically diagnosed condition, including, but not limited to, autism spectrum disorder, Down syndrome, schizophrenia, major depression, debilitating anxiety, intellectual disability, or traumatic brain injury;

(4) "Minor" means an individual under eighteen (18) years of age;

(5) "Sexual contact" means the same as defined in § 39-13-501; and

(6) "Simulated sexual contact" means any computer-generated or otherwise altered depiction that appears to portray a minor or mentally compromised individual engaged in sexual contact.

(d) A person commits the offense of grooming who knowingly communicates, solicits, or interacts with a minor or mentally compromised individual with the intent to commit, facilitate, or encourage sexual contact, simulated sexual contact, or sexual exploitation of the minor or mentally compromised individual by any means, including electronic communication or personal interaction.

(e)

(1) Except as provided in subdivisions (e)(2)-(5), a violation of subsection (d) is a Class E felony.

(2) A violation of subsection (d) is a Class A felony if the victim is a minor under thirteen (13) years of age.

(3) A violation of subsection (d) is a Class B felony if the victim is a mentally compromised individual.

(4) A violation of subsection (d) is a Class C felony if the offender has a prior conviction for a sexual offense or violent sexual offense, as those terms are defined in § 40-39-202.

(5) A violation of subsection (d) is a Class D felony if the offender holds a position of trust, authority, or supervision over the victim at the time of the offense.

(f) It is not a defense to a violation of subsection (d) that the subject of the offense is a law enforcement officer posing as a minor.

(g) A person is subject to prosecution in this state under this section for any conduct that originates in this state, or for any conduct that originates by a person located outside this state, where the person solicited the conduct of a minor located in this state, or solicited a law enforcement officer posing as a minor located within this state.

(h) This section is in addition to and does not supersede or limit other provisions of law, including existing offenses involving sexual exploitation of a minor under § 39-17-1003, child abuse and child neglect or endangerment under § 39-15-401, or other child protection offenses.

SECTION 2. Tennessee Code Annotated, Section 39-13-524(a), is amended by adding the following new subdivision:

(7) July 1, 2026, commits a violation of § 39-13-536, that involves an attempt to meet, procure, or engage in sexual contact or simulated sexual contact with a minor or mentally compromised individual following grooming.

SECTION 3. Tennessee Code Annotated, Section 40-39-202(31), is amended by adding the following new subdivision:

() Grooming a minor, under § 39-13-536;

SECTION 4. The heading in this act is for reference purposes only and does not constitute a part of the law enacted by this act. However, the Tennessee Code Commission is requested to include the heading in any compilation or publication containing this act.

SECTION 5. This act takes effect July 1, 2026, the public welfare requiring it.